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Provision of October 17, 2024
Register of provisions
n. 612 of October 17, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members, and
Counsel Fabio Mattei, Secretary General;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament
and of the Council of April 27, 2016, concerning
the protection of natural persons with regard to
the processing of personal data, as well as the free
movement of such data and repealing Directive
95/46/EC, "General Data Protection Regulation" (hereinafter, "Regulation");

HAVING REGARD TO Legislative Decree No. 196 of June 30, 2003, containing
"Code regarding the protection of personal data,
containing provisions for the adaptation
of the national legal system to Regulation (EU)
2016/679 of the European Parliament and of the Council, of
April 27, 2016, concerning the protection of
natural persons with regard to the processing of personal data,
as well as the free movement of such data and repealing Directive 95/46/EC (hereinafter
"Code");

HAVING REGARD TO Regulation No. 1/2019 concerning
internal procedures with external relevance,
aimed at carrying out the tasks and
exercising the powers entrusted to the Guarantor for the
protection of personal data, approved by
resolution No. 98 of April 4, 2019, published in
G.U. No. 106 of May 8, 2019 and on www.gpdp.it, doc.
web n. 9107633 (hereinafter "Guarantor Regulation
No. 1/2019");

HAVING REGARD TO the documentation on file;

HAVING REGARD TO the observations made by the Secretary
General pursuant to Article 15 of the Guarantor's
Regulation No. 1/2000 on the organization and
functioning of the office of the Guarantor for the
protection of personal data, doc. web n. 1098801;

REPORTING Attorney Guido Scorza;

PREAMBLE

1. Introduction.

With a complaint submitted pursuant to Article 77 of
the Regulation, Mr. XX, who worked at the
Municipality of Offanengo (hereinafter "Municipality"), complained about the publication, on
the official website of the aforementioned Entity, in the "Online Register" section, of "all the resolutions
related to [the interested party] that contained personal data

(correspondence between the Entity and the employee, letters indicating the acceptance or rejection of measures, the vacation calendar, past vacations, rejected and canceled vacations, and the monetization of part of them) and sensitive data (membership in a trade union was indicated).” It was also reported that the “resolution for the assignment of legal counsel, reporting the name and surname” of the interested party who had sued the Municipality was published.

Subsequently, the complainant alleged that the Municipality had published further documentation, containing his personal data, reporting the initials of his name and surname and referring to the documentation already published previously.

2. The investigative activity.

In response to a request for information from the Authority (note prot. n. XX of XX), the Municipality, with note prot. n. XX of XX, stated, in particular, that

- “the voluntary resignation of the Complainant was accepted by resolution G.C. n. XX of XX “Acceptance of voluntary resignation from the service of Mr. XX”, an act published on XX”;
- the Complainant, with a request dated XX [...] requested the Municipality to recognize n. 89 days of unused ordinary leave, relating to the years XX; the Municipality, unable to recognize the requested leave periods for the years XX, issued a provision with resolution G.C. n. XX of XX “Ordinary leave plan for employee Mr. XX - maintenance in service”, an act published on XX and removed from the Register on XX, following a request from the Complainant;
- “in order to carry out the necessary acts for the issuance of the retirement treatment in favor of the Complainant, resolution n. XX of XX “acceptance of voluntary resignation from the service of Mr. XX”, an act published on XX;
- “following the failure to reach an agreement with the Complainant, regarding the calculation of ordinary leave days, the Municipality revoked the previous act with resolution G.C. n. XX of XX “Revocation of its act n. XX of XX “Ordinary leave plan for employee Mr. XX - maintenance in service”, an act published on XX and removed from the Register on XX, following a request from the Complainant;
- “following the appeal pursuant to Article 414 of the Civil Procedure Code to the Labor Court of Cremona, initiated by the Complainant, the Municipality entrusted a professional mandate to its trusted lawyer with resolution G.C. n. XX of XX “assignment of professional mandate to Attorney [...] for defense in the appeal proceedings of Mr. XX”, an act published on XX and removed from the Register on XX, following a request from the Complainant;
- “in order to settle the amount of money, subject to settlement between the Parties, the Municipality adopted resolution n. XX of XX “XX gross amount comprehensive of € 2,700.00 as a general and novative settlement”, an act published in the Register on XX;
- “the various resolutions were published, primarily, to achieve

executive effectiveness pursuant to

Article 124 of the T.U.E.L, Legislative Decree 267/2000, and, secondly, for the need for transparency. administrative matters concerning the organization of the Entity and the methods of use of human and financial resources”;

- “it cannot be overlooked that the Claimant held an organizational position, for which Legislative Decree 33/2013, Article 13, requires the publication and updating of ‘the information and data concerning its own organization, accompanied by the relevant regulatory documents [...]’;
- “the publication of the resolutions, in particular, concerning the appointment of the Lawyer [...], responds to the obligation set forth in Article 23 of Legislative Decree 33/2013 (Reorganization of the regulations concerning the right to civic access and the obligations of publicity, transparency, and dissemination of information by public administrations)”;
- “they also comply with the publication obligations established in the same Article 23 of Legislative Decree 33/2013, where it states: d) agreements entered into by the administration with private entities or with other public administrations, pursuant to Articles 11 and 15 of Law No. 241 of August 7, 1990. Furthermore, they also follow the obligations established by Articles 26 and 27 of Legislative Decree 33/2013, which provide for the publication of the name of the beneficiary of economic advantages when the amount granted exceeds €1,000.00”;
- “it should also be noted that no indexing was present outside the Transparent Administration site and that navigation within it is not so immediate as to allow for the casual acquisition of information without adopting a very targeted search”;
- “care was taken to verify that there were no data within the published documents whose publication is prohibited; it was also immediately arranged to remove the data published at the request of the Claimant”;
- “in particular, in resolution no. XX of XX 'Revocation of its own act no. XX of XX 'Ordinary leave plan for employee Mr. XX - maintenance in service' 'the process that led to the need to revoke an already executive act is reported, necessarily specifying the communications of the Claimant regarding the points of disagreement; referring to one of these communications, the sender was indicated as an official of a union, without also indicating the Claimant's affiliation.”

With a note dated XX, the Authority, based on the elements acquired, the checks carried out, and the facts emerged following the investigative activity, notified the Municipality pursuant to Article 166, paragraph 5, of the Code, of the initiation of the procedure for the adoption of the measures referred to in Article 58, paragraph 2, of the Regulation, for having disseminated, on its institutional website, acts and documents containing information relating to the claimant, in violation of Articles 5, 6, and 9 of the Regulation, as well as Article 2-ter, paragraphs 1 and 3, of the Code (in the text prior to the amendments made by Decree-Law No. 139 of October 8, 2021, in force at the time of the facts subject to the complaint). Based on what was stated by the Municipality, the resolutions: no. XX of XX; no. XX of XX; no. XX of XX were removed from the site on XX, following the request of the claimant, while resolution no. XX of XX and the determinations no. XX of XX and no. XX of XX are still published on the Municipality's institutional website, in the online Pretorial Register section.

With the same note, the aforementioned holder was invited to submit defensive writings or documents to the Guarantor or to request to be heard by the Authority (Article 166, paragraphs 6 and 7, of the Code, as well as Article 18, paragraph 1, of Law No. 689 of November 24, 1981).

With a note dated XX, the Municipality, which did not request to be heard, submitted a defensive memorandum, stating, in particular, that:

- “it should be emphasized that, regardless of any assessment on the merits, the facts that concern us are temporally situated in the midst of the Covid emergency. These are mostly publications related to the period XX”;
- “it is not irrelevant that the data in question were already public. There was no free reuse by anyone

for any purpose. The data in question were collected for the purpose of transparency (Article 14 and 23 of Legislative Decree No. 33 of March 14, 2013), and were used to ensure the required publicity for organizational events and resolutions concerning that public function”;

- “no data concerning the private life of XX, or extraneous to what was necessary, was published, but exclusively: name and surname (in the latest resolutions, replaced by initials). Only in resolution XX [...] are personal data contained; but this is simply an act that reports that the specific employee, whose personal data were already published, would cease to be part of the municipal organization”;

- “resolution XX [...] does not contain the personal data of XX. It involved an expenditure for the Municipality – the monetization of the period of ordinary leave – and significant organizational consequences in the midst of the Covid delirium [...]; the determination XX accepting the resignations had to be published not only for organizational purposes but also for the financial commitment that arose from it; resolution XX [...] was required to be published as it had financial and organizational impact; the other acts [...] concerned, as mentioned, the constitution in court and the stipulation of the settlement.”

3. Outcome of the investigative activity.

3.1. Applicable regulations.

The regulations on the protection of personal data provide that public entities, within the work context, may process the personal data of the interested parties, including those relating to

****Particular Categories****

if the processing is necessary, in general, for the management of the employment relationship and to fulfill specific obligations or tasks provided by law or by Union or Member State law (Articles 6, paragraph 1, letter c), 9, paragraph 2, letter b) and 4, and 88 of the Regulation). Processing is also lawful when it is “necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller” (Article 6, paragraphs 1, letter e), 2 and 3, and Article 9, paragraph 2, letter g), of the Regulation; Article 2-ter of the Code, in the text prior to the amendments made by Decree Law No. 139 of October 8, 2021).

European legislation provides that “Member States may maintain or introduce more specific provisions to adapt the application of the rules of [...] the regulation concerning processing, in accordance with paragraph 1, letters c) and e), determining more precisely specific requirements for processing and other measures to ensure lawful and fair processing [...]” (Article 6, paragraph 2, of the Regulation). In this regard, it is emphasized that the “dissemination” of personal data by public entities is permitted only when provided for by a legal norm or, in cases provided for by law, by regulation (see Article 2-ter, paragraphs 1 and 3, of the Code, in the text prior to the amendments made by Decree Law No. 139 of October 8, 2021).

Regarding special categories of personal data, processing is generally permitted, in addition to fulfilling specific obligations “in labor law [...] to the extent that it is authorized by law [...] in the presence of appropriate safeguards” (Article 9, paragraph 2, letter b), of the Regulation), also when “necessary for reasons of substantial public interest based on Union or Member State law, which must be proportionate to the pursued aim, respect the essence of the right to data protection, and provide for appropriate and specific measures to protect the fundamental rights and interests of the data subject” (Article 9, paragraph 2, letter g), of the Regulation).

The employer, as the data controller, is, in any case, required to comply with the general principles regarding the protection of personal data (Article 5 of the Regulation) and must process the data through “authorized” and “trained” personnel regarding access to and processing of the data (Articles 4, point 10), 29, and 32, paragraph 4, of the Regulation).

****3.2. The Dissemination of Personal Data.****

As evidenced by the documents and statements made by the data controller during the investigation, as well as the findings made based on the elements acquired, following the investigative activity and subsequent evaluations of this Department, the Municipality has published, on its official website, acts and documents containing information concerning, in particular, events arising from the termination of the claimant's employment relationship with the Municipality. In particular, the following documents

were published: Resolution No. XX of XX "Acceptance of voluntary resignation from the service of Mr. XX"; Resolution No. XX of XX "Ordinary leave plan for employee Mr. XX - maintenance in service"; Determination No. XX of XX "Acceptance of voluntary resignation from the service of Mr. XX"; Resolution No. XX of XX "Revocation of its own act No. XX of XX "Ordinary leave plan for employee Mr. XX - maintenance in service"; Resolution No. XX of XX "Assignment of professional task to Attorney [...] for defense in the appeal proceedings of Mr. XX"; Determination No. XX of XX "XX gross total amount of €2,700.00 as a general and novative settlement", all documents containing information regarding events arising from the termination of the claimant's employment relationship with the Municipality.

It is clarified that "personal data" means "any information relating to an identified or identifiable natural person", with "identifiable" referring to a natural person who can be identified, directly or indirectly, particularly by reference to an identifier such as a name, an identification number [...]" (Article 4, paragraph 1, n. 1) of the Regulation). It is noted that the use of initials of the surname and name of the data subjects (as in this case concerning Determination No. XX of XX) may not be sufficient to avoid their identifiability, especially when associated with other contextual information or additional identifying elements.

Regarding the legal basis that would justify the dissemination of the claimant's personal data, the Municipality has not demonstrated the existence of a specific legal norm that obliges the entity to publish acts and documents such as, among others, the voluntary resignation of the claimant and the consequent determinations arising from the request of the interested party for recognition of the unused ordinary leave days. In this regard, it should be recalled that the Guarantor has clarified on several occasions that even the presence of a specific publicity regime (a circumstance that does not occur in this case) cannot entail any automaticity regarding the online dissemination of personal data and information, nor a derogation from the principles regarding the protection of personal data (see numerous provisions including the provision of September 15, 2022, n. 299 doc web 9815665 and the provision of February 25, 2021, n. 68, doc web 9567429). This is also confirmed by the personal data protection system contained in the Regulation, under which it is provided that the data controller must implement "appropriate technical and organizational measures to ensure that, by default, only the data necessary for each specific purpose of the processing" and must be "able to demonstrate" – in light of the principle of "accountability" – that it has done so (Articles 5, paragraph 2; 24 and 25, paragraph 2, Regulation).

In numerous decisions regarding the obligations arising from Article 124 of Legislative Decree No. 267 of August 18, 2000, invoked by the Municipality, the Authority has reiterated that all the limits provided by the principles of data protection regarding lawfulness and data minimization also apply to publications in the online notice board (cfr. Part II, paragraph 3.a. of the provision of May 15, 2014, No. 243, web document No. 3134436 "Guidelines on the processing of personal data, including those in acts and administrative documents, carried out for purposes of publicity and transparency on the web by public entities and other obligated bodies").

In any case, it is highlighted that there is a dissemination well beyond the 15-day period provided by the invoked regulation, and therefore, even if there had been a rule establishing the publication of the aforementioned documents pursuant to the above-mentioned Article 124, once the period for publication had elapsed, the Municipality would not have been able to continue disseminating the personal data contained therein. Otherwise, there would have been an unlawful dissemination of personal data for the period exceeding the duration provided by the relevant regulation, as it would not have been supported by suitable legal grounds.

With particular regard to the reference to the transparency obligations under Legislative Decree of March 14, 2013, No. 33, it is noted, preliminarily, that the publication of the resolutions in question took place in the "Notice Board" section of the Municipality's institutional website and not, instead, in the "Transparent Administration" section, and therefore, this regulatory reference is irrelevant to the facts subject to the complaint. In particular, none of the provisions of Legislative Decree of March 14, 2013, No. 33 imposes the publication of information concerning the events related to the termination of the

complainant's employment relationship with the Municipality and the consequent determinations, which are the subject of this proceeding.

In confirmation of the above, it is further represented that the provisions regarding the transparency of administrative action, invoked by the Municipality, are not sufficient to guarantee the legitimacy of the publication of the aforementioned acts, as the Municipality, had it wished to publish, pursuant to Legislative Decree No. 33 of 2013, the resolutions in question, which it was not obliged to publish, should have, from the outset, "arranged for the publication on its institutional website of data, information, and documents [...] proceeding to indicate in an anonymous form any personal data present" (Article 7-bis, paragraph 3, of Legislative Decree No. 33/2013).

Furthermore, the reference to Articles 1, 2, and 13 of Legislative Decree No. 33 of 2013 is also not pertinent, as these articles regulate general principles concerning administrative transparency. In particular, Article 13 establishes that "public administrations publish and update the information and data concerning their own organization" without providing any obligation to publish information concerning specific events arising from the employment relationship, such as, in this case, documentation regarding the acceptance of the complainant's voluntary resignation and consequent acts.

Similarly, the reference to Articles 3, 23, 26, and 27 of the same legislative decree is also not pertinent. With particular regard to what is established by Article 23 of the aforementioned decree, it is represented that this provision requires the obligation to publish "the lists of measures" while it does not provide for the full publication of the same; regarding Articles 26 and 27, which regulate the "Obligations to publish acts granting subsidies, contributions, grants, and the attribution of economic advantages to individuals and public and private entities" and the "Obligations to publish the list of beneficiaries," it is highlighted that in determination No. XX of XX, mentioned above among those subject to publication, the monetary quantification of the compensation for the non-utilization of vacation days by the complainant following a settlement with the Municipality is indicated, and therefore this act cannot be classified as an "act granting subsidies, contributions, and grants," as the Municipality has also published types of personal data not attributable to those expressly identified by the referenced sector regulation (see regarding this provision of July 6, 2023, No. 286, web document 9920116; see also the opinion of the Authority rendered to the National Anti-Corruption Authority – ANAC – on the "Data publication schemes for standardization pursuant to Article 48 of Legislative Decree 33/2013," with provision of February 22, 2024, No. 92, web document No. 9996090).

Moreover, the circumstance that "the data in question were already public" does not allow, in any case, to consider the processing carried out by the Municipality as lawful, given that the knowledge and publicity of the data must comply with the principle of "purpose limitation," according to which personal data must be "collected for specified, explicit, and legitimate purposes, and subsequently processed in a manner that is not incompatible with those purposes" (Article 5, paragraph 1, letter b) of the Regulation).

In other words, the mere fact that personal information is made publicly available online does not mean that it can be freely reused by anyone for any purpose, as it must be assessed from time to time "whether, for what purposes, and under what limits and conditions any further uses of the publicly disclosed personal data can be considered lawful in light of the 'purpose principle' and the other principles of..."

****European Framework on the Protection of Personal Data**** (see provision of March 25, 2021, no. 106, web document no. 9584421 and provision of March 12, 2020, web document no. 9429218).

Lastly, the indication in resolution no. XX of XX of the note from a union representative "who requested a modification to resolution no. 44," on behalf of the complainant, albeit indirectly, may suggest the complainant's adherence to the indicated union organization. The Municipality, therefore, did not take into account what this Authority has long affirmed in the aforementioned Guidelines, namely that "the selection process of personal data that can be made known online must also be particularly careful in cases where such information is likely to reveal racial and ethnic origin, religious or philosophical

beliefs, political opinions, adherence to parties, unions, associations, or organizations of a religious, philosophical, political, or union nature.”

In light of the above considerations, such behavior has resulted in the dissemination of the complainant's personal data in the absence of an appropriate legal basis, in violation of Articles 5, 6, and 9 of the Regulation and Article 2-ter of the Code (in the text prior to the amendments made by Legislative Decree No. 139 of October 8, 2021).

****4. Conclusions: Declaration of Illegality of the Processing. Corrective Measures pursuant to Article 58, paragraph 2, of the Regulation.****

In light of the evaluations mentioned above, it is noted that the statements made by the data controller during the investigation – the veracity of which may be subject to accountability under Article 168 of the Code – although deserving of consideration, do not allow for overcoming the objections notified by the Office with the initiation of the procedure and are insufficient to permit the closure of the present procedure, as none of the cases provided for by Article 11 of the Garante Regulation No. 1/2019 apply.

The processing of personal data carried out by the Municipality is indeed illegal, as outlined above, since it was carried out in violation of Articles 5, 6, and 9 of the Regulation, as well as Article 2-ter of the Code.

Regarding the exercise of corrective powers under Article 58, paragraph 2, of the Regulation, it is reported that during the investigation it emerged that the Junta Resolution No. XX of XX and the determinations No. XX of XX and No. XX of XX, containing personal data of the complainant, continue to be currently available on the Municipality's official website, in the section of the online public register.

Therefore, taking into account the above, it is deemed necessary to prescribe to the Municipality, due to the illegality of the processing carried out and pursuant to Article 58, paragraph 2, letter f), the limitation of the ongoing processing, prohibiting the data controller from any further illegal dissemination as it is not provided for by law and is contrary to the principles of personal data protection.

It is finally noted that the conditions of Article 17 of Regulation No. 1/2019 are met.

****5. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (Articles 58, paragraph 2, letters i and 83 of the Regulation; Article 166, paragraph 7, of the Code).****

The violation of Articles 5, 6, and 9 of the Regulation entails the application of the administrative sanction provided for by Article 83, paragraph 5 of the Regulation.

The Garante, pursuant to Articles 58, paragraph 2, letter i) and 83 of the Regulation as well as Article 166 of the Code, has the power to “impose an administrative pecuniary sanction pursuant to Article 83, in addition to [other] corrective measures [of this paragraph], or in lieu of such measures, depending on the circumstances of each individual case” and, in this context, “the College [of the Garante] adopts the injunction order, which also provides for the application of the accessory administrative sanction of its publication, in whole or in part, on the Garante's website pursuant to Article 166, paragraph 7, of the Code” (Article 16, paragraph 1, of the Garante Regulation No. 1/2019).

In this regard, taking into account Article 83, paragraph 3, of the Regulation, in this case, the violation of the cited provisions is subject to the application of the administrative pecuniary sanction provided for by Article 83, paragraph 5, of the Regulation.

The aforementioned administrative pecuniary sanction imposed, depending on the circumstances of each individual case, must be determined in amount taking into due account the elements provided for by Article 83, paragraph 2, of the Regulation.

Considering that:

- with specific regard to the nature, severity, and duration of the violation, it must be noted that the

dissemination of data occurred on the Municipality's institutional website without indexing on search engines and concerned only one interested party (see Article 83, paragraph 2, letter a), of the Regulation);

- with specific regard to the subjective profile of the violation, the Municipality, being small in size, acted under the mistaken belief of fulfilling a legal obligation despite the numerous indications provided by the Garante to all public entities since 2014 with the aforementioned guidelines (see also "Guidelines on the processing of personal data of workers for the purpose of managing the employment relationship in the public sector" of June 14, 2007, web document no. 1417809) (Article 83, paragraph 2, letter b), of the Regulation);

- the processing involved the dissemination of information also referring, albeit indirectly, to special categories (Article 9 of the Regulation),

****regarding membership in a trade union****

(cf. art. 83, par. 2, lett. g), of the Regulation).

In light of this specific circumstance, it is believed that, in this case, the level of severity of the violation committed by the data controller is medium (cf. European Data Protection Board, "Guidelines 4/2022 on the calculation of administrative monetary penalties pursuant to the GDPR" of May 24, 2023, point 60).

That said, the following mitigating circumstances should be considered favorably for the data controller:

- there are no previous relevant violations committed by the data controller of the same nature as those established in relation to the complaint facts, or previous measures pursuant to art. 58 of the Regulation (art. 83, par. 2, lett. e), of the Regulation);

- the Municipality has offered good cooperation with the Authority during the investigation (art. 83, par. 2, lett. f), of the Regulation);

- the violation occurred in a context characterized by numerous organizational difficulties related to the issues of the emergency period due to the spread of the Sars Cov 2 virus (art. 83, par. 2, lett. k), of the Regulation).

In light of the aforementioned elements, assessed in their entirety, it is deemed appropriate to determine the amount of the monetary penalty at €8,000 (eight thousand) for the violation of arts. 5, 6, and 9 of the Regulation, as well as 2-ter of the Code, as an administrative monetary penalty deemed, pursuant to art. 83, par. 1, of the Regulation, effective, proportionate, and dissuasive.

In this context, it is also believed that, pursuant to art. 166, paragraph 7, of the Code and art. 16, paragraph 1, of the Garante Regulation no. 1/2019, the publication of this section containing the injunction order on the Garante's website should proceed.

This is in consideration of the numerous documents subject to publication, and the extended time frame during which such documents have been published on the Municipality's website - some of which are still published online - and that the processing concerned the dissemination of events related to the employment relationship of the interested party and information related, albeit indirectly, to special categories of data, such as membership in a trade union.

****ALL OF THE ABOVE CONSIDERED, THE GARANTE****

a) pursuant to arts. 57, par. 1, lett. f) and 83, of the Regulation, notes the unlawfulness of the processing carried out by the Municipality of Offanengo as stated in the reasoning, for the violation of arts. 5, 6, and 9 of the Regulation, as well as 2-ter of the Code (both in the text prior to the amendments made by the decree-law of October 8, 2021, in force at the time when the dissemination of the personal data in question began, and in the current text);

b) pursuant to art. 58, par. 2, lett. f) of the Regulation, prescribes to the aforementioned Municipality to comply, within thirty days from the date of notification of this provision, with the prescriptions formulated in par. 4 of this decision, simultaneously requesting it to provide, within the aforementioned term, an adequately documented response pursuant to art. 157 of the Code; any failure to respond may result in the application of the administrative monetary penalty provided for by art. 83, par. 5, lett. e) of the Regulation;

****ORDERS****

c) pursuant to art. 58, par. 2, lett. i) of the Regulation, the Municipality of Offanengo, represented by the pro-tempore legal representative, with registered office at Piazza Sen Patrini 13 - 26010 Offanengo (CR) - C.F. 00299140194, to pay the sum of €8,000 (eight thousand) as an administrative monetary penalty for the violations indicated in this provision;

****ORDERS****

d) therefore, the Municipality to pay the aforementioned sum of €8,000 (eight thousand), according to the methods indicated in the annex, within thirty days from the notification of this provision, under penalty of the adoption of subsequent executive acts pursuant to art. 27 of law no. 689/1981. It is noted that pursuant to art. 166, paragraph 8 of the Code, the offender retains the option to settle the dispute by paying - always according to the methods indicated in the annex - an amount equal to half of the imposed penalty within the term provided for the filing of the appeal as indicated below;

****DISPOSES****

e) pursuant to art. 166, paragraph 7, of the Code and art. 16, paragraph 1, of the Garante Regulation no. 1/2019, the publication of the injunction order on the Garante's website;

f) pursuant to art. 154-bis, paragraph 3 of the Code and art. 37 of the Garante Regulation no. 1/2019, the publication of this provision on the Authority's website;

g) pursuant to art. 17 of the Garante Regulation no. 1/2019, the annotation of the violations and the measures adopted in accordance with art. 58, par. 2 of the Regulation, in the internal register of the Authority provided for by art. 57, par. 1, lett. u) of the Regulation.

Pursuant to arts. 78 of the Regulation, 152 of the Code, and 10 of legislative decree no. 150/2011, against this provision it is possible to appeal to the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, October 17, 2024

****THE PRESIDENT****

Stanzione

****THE RAPPORTEUR****

Scorza

****THE SECRETARY GENERAL****

Mattei